

Texas WIC Health and Human Services Commission

Effective July 1, 2026

Policy No. CS:35.0

Certification of Homeless and Those Living in Shelters and Institutions

Purpose

To ensure the eligible homeless applicants have access to WIC services. WIC services must benefit the WIC participant and not the homeless facility, as required by federal regulation.

Authority

CFR 246.7

Policy

The local agency (LA) staff must check the identification, income, and residency of each applicant/participant and parent/guardian applying on behalf of an infant and/or child at each certification. The LA must establish to the extent possible that shelter/institution/homeless facility where participants reside meets the conditions in this policy.

Definitions

Residency – The location or address where applicant routinely lives or spends the night.

Homeless Individual – A woman, infant, or child who lacks a fixed and regular nighttime residence; or whose primary nighttime residence is:

- a supervised publicly or privately operated shelter (including a welfare hotel, a congregate shelter, or a shelter for victims of domestic violence) designated to provide temporary living accommodation;
- an institution that provides a temporary residence for individuals intended to be institutionalized;
- a temporary accommodation in the residence of another individual not exceeding 365 days;

Texas WIC

Health and Human Services Commission

Effective July 1, 2026

Policy No. CS:35.0

- a public or private place not designated for, or ordinarily used as, a regular sleeping accommodation for human beings, including those residing in vehicles, parks, hallways, doorsteps, vacant buildings, etc.

Homeless Facility – The following types of facilities which provide meal service:

- a supervised publicly or privately-operated shelter (including a welfare hotel or congregate shelter) designed to provide temporary living accommodations;
- a facility that provides a temporary residence for individuals intended to be institutionalized; or
- a public or private place not designed for, nor normally used as, a regular sleeping accommodation for human beings.

Institution – Any residential accommodation which provides meal service, except private residences and homeless facilities.

Procedures

- I. Enrolling homeless persons or those living in shelters or institutions:
 - A. Identification - applicants must provide proof of identification with:
 1. acceptable proof as outlined in [CS:05.0 Identification of a WIC Applicant/Participant and Parent or Guardian](#), or
 2. a WIC Self- Declaration Form for Identification, Residency, Zero-Income (Cash on Hand) and Proof of Income (Homeless) if no proof of identification exists (SKU:13-06-13567). A copy or electronic image of the form must be scanned and uploaded to the MIS. Documents obtained via electronic transmission are automatically saved in the MIS.
 - B. Residency – applicants must provide proof of residency with one of the following:
 1. acceptable proof as outlined in [CS:06.0 Residency as a Certification Requirement](#), or

Texas WIC Health and Human Services Commission

Effective July 1, 2026

Policy No. CS:35.0

2. signed statement from shelter verifying residency, or
 3. a WIC Self-Declaration Form (SKU:13-06-13567) if no proof exists. A copy or electronic image of the form must be scanned and uploaded to the MIS. Documents obtained via electronic transmission are automatically saved in the MIS.
- C. Income – Applicant must provide proof of income with one of the following:
1. acceptable proof, as outlined in [CS:07.0 Income Screening as a Certification Requirement](#), or
 2. a WIC Self-Declaration Form (SKU:13-06-13567) if no proof exists. A copy or electronic image of the form must be scanned and uploaded to the MIS. Documents obtained via electronic transmission are automatically saved in the MIS.
- II. Shelter/Institution/Homeless Facility Requirements and Documentation Where the Families Currently Reside
- A. Requirements – The LA must evaluate whether the shelter/institution/homeless facility meets the following conditions:
1. it does not accrue financial or in-kind benefit from the applicant's participation in WIC, and
 2. WIC foods must not be used in communal feedings, but are available exclusively to the WIC participant for whom they were issued; and
 3. it does not place constraints on the ability of the applicant to partake of the WIC food benefits and all associated WIC services.
- B. The LA must ensure that the shelter/institution/homeless facility meets the requirements by:
1. contacting all facilities every three years where WIC participants currently reside to verify the required conditions are being met.

Texas WIC Health and Human Services Commission

Effective July 1, 2026

Policy No. CS:35.0

The contact may be via phone, email or signed letter of agreement from the facility.

2. retaining the documentation of contact or attempt to contact the facility for audit/review.
3. requesting the facility notify the LA if any of the conditional requirements are no longer being met.

III. Non-compliant Shelters/Institution/Homeless Facility

A. When a facility is determined to be noncompliant to conditional requirements, the LA must:

1. Refer participants to alternate facilities inside the LAs service area that meet compliance requirements.
2. If the participants do not want to reside in the alternate facility continue issuing food benefits and services and inform the participants that their WIC food benefits will discontinue at the end of their certification period if they continue to reside in a noncompliant facility, with the exception of infants. Certified infants must continue to receive all their food benefits regardless of their residence.
3. Continue to provide other WIC services to all participants residing in the facility, such as nutrition education, breastfeeding promotion and support, and health care referral services.

B. In situations where there are no alternate compliant shelters available, continue to certify and provide food benefits to eligible participants residing in a noncompliant shelter.

IV. If shelter/homeless facility/institution does not receive physical mail, proxies of participants residing in these facilities may pick up assigned Texas WIC Card(s) for the endorser and redeem food benefits in bulk for multiple participants residing in the facility. The LA must ensure that adult participants are allowed to participate in the process of picking up their Texas WIC Card and shopping for their food benefits to the

Texas WIC Health and Human Services Commission

Effective July 1, 2026

Policy No. CS:35.0

greatest extent possible, within the homeless facility/institutional framework, so that they are aware of the foods prescribed for them as well as the intended benefits of such foods.

Guidelines

Informing participants of the shelter/institution/homeless facility requirements will help to ensure that conditions continue to be met.